

SOP 103: Reporting Incidents

1 Summary

This document establishes procedures for Incident and Adverse Event reporting at the Notre Dame Human Neuroimaging Center (ND-HNC). It is intended to match the Incident or Adverse Event with the entity to which reports are made.

2 Scope

These policies apply to all investigators, research assistants, and staff who use the ND-HNC.

3 Definitions

- **Adverse Event:** Any untoward or unfavorable medical occurrence in a human subject, including any abnormal sign, symptom, or disease, *temporally* associated with the subject's participation in the research, whether or not considered related to the subject's participation in the research.¹
- **Good Catch:** Early recognition of an event with the potential to cause damage, injury, or illness.
- **Incident:** An occurrence, action, or event that warrants reporting (e.g. a policy is not followed and/or an individual's health is at risk). Includes Adverse Events, Near Misses, Unanticipated Problems, etc.
- **Near Miss:** An incident that occurred but did not cause personal injury/illness e.g. a small/contained fire, trip on sidewalk or carpeting, falling object.
- **Serious Injury:** An injury or illness that is life threatening; results in permanent impairment of a body function or permanent damage to a body structure; or necessitates medical or surgical intervention to preclude permanent damage or impairment.²
- **Unanticipated Problem:** An incident, experience, or outcome that meets **all** of the following criteria: (1) unexpected (in terms of nature, severity, or frequency) given (a) the research procedures that are described in the protocol-related documents, such as the IRB-approved research protocol and informed consent document; and (b) the characteristics of the subject population being studied; (2) related or possibly related to participation in the research; and (3) suggests that the research places subjects or others at a greater risk of harm than was previously known or recognized.¹

- **Visitor:** An individual who has not taken the ND-HNC MRI Safety Course but has a legitimate reason for entering the MRI suites. Research participants and their legal guardians are Visitors. Other Visitors may include: individuals providing/receiving a tour of the VFPC and ND-HNC, faculty and staff who have not received MRI Safety Course, and research assistants.

4 Notes

This SOP does not replace any requirements or obligations research personnel have for reporting Adverse Events or Unanticipated Problems.

5 Policies & Procedures

The safety of research personnel and participants is of paramount importance in all research activities. Accordingly, any Incident that puts an individual's health, safety, or well-being at risk must be reported and documented promptly. Center (ND-HNC), University, federal, and manufacturer policies require different levels of reporting at different time intervals; a single Incident is likely to be reported to multiple entities.

An Adverse Event can be understood as any accident, injury, illness, or health-related complaint that may be *temporally* associated with a Visitor's involvement with the ND-HNC. These may range from minor (e.g. headache) to serious (see, Serious Injury). For instance, a Visitor may have a tour of the center and then complain about feeling faint. We do not differentiate between expected and unexpected Adverse Events.

A Serious Injury describes a severe medical emergency. It includes any injury or illness that is immediately life-threatening, causes lasting damage to how a person's body functions or looks, or requires urgent medical or surgical treatment to prevent that permanent damage from happening.

An Unanticipated Problem is an unexpected event or outcome that is related to research operations and constitutes a new, previously unknown risk. The emergence of Lululemon's Silverscent material, and the resulting burns, are an example.

Because the distinction among the various Incident types may not always be immediately clear, personnel should prioritize safety and appropriate response over classification. Any Incident must be addressed promptly, documented appropriately, and reported to the relevant University authorities as required. Final determination of Incident classification may be made following review of the circumstances.

The ND-HNC follows all guidelines and reporting measures set in place by the University of Notre Dame's Incident Reporting and Management Program from the Risk Management and Safety Department.³

5.1 Incidents involving Faculty, Staff, Students & Contractors

Any Incident which occurs with an employee or student of the University of Notre Dame must be immediately reported to ND-HNC staff.

ND-HNC staff then:

1. Navigate to Risk Management³
2. Follow the prompts, selecting the appropriate option (e.g. Good Catch)
 - 2.1 If reporting an injury, select “**Yes**” to complete the **Safety Incident Report**.
 - 2.2 Note: ND faculty or staff must submit this report on behalf of unpaid students and contractors.
3. Log the Incident in ND-HNC Form LG03: Incidents.

5.2 Incidents involving Visitors

Any Incident which occurs with an individual not affiliated with Notre Dame, or with an affiliate during their personal time (e.g. lunch break) must be immediately reported to ND-HNC staff.

ND-HNC staff then:

1. Navigate to Risk Management³
2. Follow the prompts, selecting the appropriate option (e.g. Good Catch)
 - 2.1 If reporting an injury, select “**No**” to complete the **General Liability Incident Report**.
3. Log the Incident in ND-HNC Form LG03: Incidents.

5.3 MRI-Related Incidents

Incidents related to the MRI scanner are reported to: (1) the University, (2) the Food and Drug Administration (FDA), and (3) the manufacturer (Siemens).⁴

5.3.1 University Reporting

Follow procedures detailed in Sections 5.1, 5.2.

5.3.2 FDA Reporting

ND-HNC staff voluntarily report Adverse Events and Serious Injuries to the FDA through their MedWatch⁵ program. Items that should be reported to the FDA:

- Device-related Death: within 10 work days of becoming aware (Form FDA 3500A).
- Annual summary of death and serious injury reports: January 1 for the preceding year (Form FDA 3419).
- Unexpected side effects or adverse events including but not limited to, skin rashes to more serious complications.
- Product quality problems such as information if a product isn't working properly or if it has a defect.
- "Information that reasonably suggests" that a medical device has caused or contributed to a reportable event including information such as professional, scientific or medical facts and observations or opinions.
- "Information that is reasonably known" to user facilities including information found in documents and any information that becomes available as a result of reasonable follow-up within the facility.

To file a report:

1. Navigate to MedWatch.⁵
2. Select 'Report a Problem'.
3. Select 'Health Professional'.
4. Fill out the **MedWatch Voluntary Health Professional Report** to the best of your ability.

5.3.3 Siemens Reporting

ND-HNC staff voluntarily report Adverse Events and Serious Injuries to the MRI Manufacturer (Siemens). Items that should be reported to Siemens:

- Device-related Death: within 10 work days of becoming aware (Form FDA 3500A).
- Device-related Serious injury: within 10 work days of becoming aware (Form FDA 3500A).

To file a report:

1. Call Siemens Customer Care Center: 1-800-743-6367.⁶
2. Alternatively, call Siemens Healthineers: 1-800-888-7436.⁷

6 Figures

None.

References

- [1] Office for Human Research Protections. (2007). Reviewing and reporting unanticipated problems involving risks to subjects or others and adverse events: OHRP guidance (2007).
- [2] 21 U.S.C. § 802(25).
- [3] <https://riskmanagement.nd.edu/incident-reporting-management>
- [4] <https://www.fda.gov/medical-devices/medical-device-safety/medical-device-reporting-mdr-how-report-medical-device-problems>
- [5] <https://www.fda.gov/safety/medwatch-fda-safety-information-and-adverse-event-reporting-program>
- [6] <https://www.siemens.com/en-us/contact/>
- [7] <https://www.siemens-healthineers.com/en-us/how-can-we-help-you>